Policy Paper

Iraq's Draft Law of Freedom of Expression and Peaceful Assembly

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Executive Summary

Freedom of opinion and expression is a fundamental human right that encompasses multiple rights and freedoms. Citizens around the world strive every day to defend these rights and freedoms in their quest for a life in dignity and remind their governments and authorities of their duty to promote and protect these rights and prevent any prejudice to them, as they constitute the cornerstone upon which are built all hopes to enjoy the other rights.

Our aim behind forging a coalition and debating Iraq's Draft Law of Freedom of Expression and Peaceful Assembly goes beyond this text of law, as we also seek to convey the concerns and expectations of opinion leaders, including activists, human rights defenders, journalists, lawyers, and others, regarding this crucial right and everything related to it.

We say “everything” because our campaign, research, surveys, and contacts with similar campaigns led by other peer entities have revealed concerns about issues other than the Draft Law, which we will be outlining in the present paper under the “Observed Methodology” section.

Our campaign operated through a coalition of non-governmental organisations (NGOs), activists, and journalists, including **SAMA Organisation for Psychological and Social Support** and **Al-Nidal Association for Human Rights**, supported by **Innovation for Change Middle East and North Africa (I4C MENA)** and the **Gulf Centre for Human Rights**. It was part of a larger campaign organised over the course of two and a half months during which dialogue sessions were held in different Iraqi governorates (Baghdad, Anbar, Wasit, Nasiriyah) to deliberate with stakeholders and opinion leaders, develop the present policy paper reflecting the views of participants as well as campaign organisers, and share these views with relevant executive and legislative authorities. The campaign aims ultimately to prevent the promulgation of any laws that include freedom-restricting or freedom-depriving provisions, in keeping with human rights principles guaranteed by international treaties and domestic laws and regulations, particularly the Iraqi Constitution.

Innovation for Change is an international network of people and organisations who connect, collaborate, and learn together to find positive ways to overcome obstacles causing the closure of civic spaces and restrictions imposed on our fundamental rights of assembly, association, and speech. It operates through seven Innovation Centres around the world inspired by ideas, methods, and techniques from diverse sectors to create solutions that promote positive social change.



The Gulf Centre for Human Rights is an independent non-profit and non-governmental organisation which supports and protects human rights defenders in the Gulf region and neighbouring countries in order to promote human rights, including the freedom of expression, press, association, and peaceful assembly.

Observed Methodology

A close observation of the post-2003 lawmaking trajectory and relevant events indicates that a number of legal texts pertaining in a way or another to the freedom of opinion and expression, including the Access to Information Draft Law, the Draft Law of Freedom of Expression and Peaceful Assembly, the Cybercrimes Draft Law, and Journalist Protection Law, were formulated in versions that neither cater for the needs of individuals and society as a whole nor observe human rights principles in terms of guaranteeing these rights and ensuring that no infringement of such rights occurs. In addition, timing is also a troubling factor, as these Draft Laws have been mostly dealt with as one package and brought into the spotlight all at once repetitively during the periods 2010-2011 and 2018-2019 and recently since 2022 in an attempt to pass them despite widespread disapproval.

We also noted the use of a worrisome and disturbing systemic practice aimed at wasting time and thwarting the efforts of all parties involved in the amendments and corrections to enact sound and judicious laws that effectively serve their purpose. In many occasions, parties managed to reach relatively good drafts, but they were later surprised by the resurfacing of older versions as if nothing had happened, with no respect or appreciation to these efforts - sometimes under the pretext that the Draft Laws were only discussed as proposals, sometimes under the excuse that the older versions were mistakenly presented for reading in the Parliament and were later retrieved. In addition, the Iraqi Parliament intends to adopt the final version of Iraq's Draft Law of Freedom of Expression and Peaceful Assembly, whereby promulgating in accordance with Article 38 of the Iraqi Constitution a law that is inconsistent with the freedom of expression and the public freedoms provided for in international conventions ratified by Iraq.

Given the above, we submit the present policy paper with a set of recommendations regarding Iraq's Draft Law of Freedom of Expression and Peaceful Assembly of 2010 - if the Parliament intends to look into this version, and we demand that these recommendations and observations be referred to as general pillars and a high-level framework to be taken into consideration in any other proposed Draft Law, without reverting to the original situation. We also discussed the 2023 draft which was debated and described by the Council of Ministers as a proposal that could constitute a draft of the Law of Freedom of Expression and Peaceful Assembly.

Legal Framework

Most constitutions around the world have recognised and confirmed that freedom of expression takes precedence over all other freedoms and rights and is the foundation to attain them. In general, governments are supposed to have the power and authority to enforce the regulation, protection, and promotion of rights and freedoms, provided that they uphold and do not contravene human rights principles and the international treaties and charters that govern them, particularly **the Universal Declaration of Human Rights of 1948**. In fact, Article 19 of UDHR stipulates the following: “Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive, and impart information and ideas through any media and regardless of frontiers.”

Also, Article 19 of the **International Covenant on Civil and Political Rights** states the following:

1. Everyone shall have the right to hold opinions without interference.
2. Everyone shall have the right to freedom of expression; this right shall include freedom to seek, receive, and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice.
3. The exercise of the rights provided for in Paragraph 2 of this article carries with it special duties and responsibilities. It may therefore be subject to certain restrictions, but these shall only be such as are provided by law and are necessary:
   (a) For respect of the rights or reputations of others;
   (b) For the protection of national security or of public order, or of public health or morals.

Guided by the International Covenant on Civil and Political Rights and its articles, we underscore the need to achieve the four foundations underpinning the two International Covenants:

- Liberating peoples from the domination and tyranny of both old and new colonialism by asserting their right to self-determination and the free disposal of their wealth and natural resources within the framework of a just economic system.
- Liberating individuals from the oppression and injustice of humans by prohibiting racial discrimination, slavery, and the trafficking in human beings.
- Liberating individuals from the oppression and injustice of dictatorial and tyrannical governments and authorities that serve the interests of business owners by establishing and promoting public freedoms and political, economic, social, and cultural rights.
- Liberating vulnerable groups from the causes of their vulnerability through the establishment of special protection for these groups such as children, women, and the elderly.

The Arab Charter on Human Rights supports and affirms the right to freedom of expression in different ways, including in Article 24 which stipulates the following:

Every citizen has the right:

1- To freely pursue a political activity.
2- To take part in the conduct of public affairs, directly or through freely chosen representatives.
3- To stand for election or choose his representatives in free and impartial elections, in conditions of equality among all citizens that guarantee the free expression of his will.
4- To the opportunity to gain access, on an equal footing with others, to public office in his country in accordance with the principle of equality of opportunity.
5- To freely form and join associations with others.
6- To freedom of association and peaceful assembly.
7- That no restrictions may be placed on the exercise of these rights other than those which are prescribed by law and which are necessary in a democratic society in the interests of national security or public safety, public health or morals, or the protection of the rights and freedoms of others.

In addition, Article 32 of the same charter states the following:

1- The present Charter guarantees the right to information and to freedom of opinion and expression, as well as the right to seek, receive, and impart information and ideas through any medium, regardless of geographical boundaries.
2- Such rights and freedoms shall be exercised in conformity with the fundamental values of society and shall be subject only to such limitations as are required to ensure respect for the rights or reputation of others or the protection of national security or of public order, or of public health or morals.

At the domestic level and in conformity with the principle of constitutional supremacy, all Iraqi constitutions upheld and guaranteed the freedom of expression, starting with the first Iraqi constitution promulgated in 1925, called **Iraq's Basic Law of 1925**. In the first chapter of the said Law entitled "The Rights of the People," Article 12 states that the freedom of expression of opinion, of publication, of meeting together, and of forming and joining associations is guaranteed to all Iraqis within such limits as may be prescribed by law.

The freedom of expression was also guaranteed by all subsequent constitutions and their amendments, including **Iraq's Constitution of 2005** which affirms in Article 38 the following:

> The State shall guarantee in a way that does not violate public order and morality:
>
> First - Freedom of expression using all means.
>
> Second - Freedom of press, printing, advertisement, media, and publication.
>
> Third - Freedom of assembly and peaceful demonstration, and this shall be regulated by law.

However, the 2005 Constitution fills the legislative gap by referring to applicable laws and regulations in Article 130 which stipulates that "existing laws shall remain in force, unless annulled or amended in accordance with the provisions of this Constitution."

Given that the laws in force impose many restrictions dating back to dark eras of dictatorship and oppression, this reference is a source of concern. It is evident that some of laws in effect are restrictive; and these restrictions should be replaced by constant and stable foundations through modern and human rights-sensitive legislation.

By the term "restrictions," we mean **Order 19 of the Coalition Provisional Authority (CPA) entitled "Freedom of Expression"** which suspended the provisions of Paragraphs 220, 221, and 222 of the **Iraqi Penal Code No. 111 of 1969**, deemed as unreasonably restrictive of the right to freedom of expression and the right of peaceful assembly. Speaking of CPA orders, it is important to mention **Order 7 entitled "Penal Code"** which indicates that most of the provisions of the 1969 Iraqi Penal Code shall remain in effect under the CPA.

Yet the question remains: Did all these laws, regulations, and international treaties actually guarantee the freedom of expression in Iraq and does Iraq have today national legislations that regulate and protect rights and freedoms, or does the Iraqi judiciary still adjudicate based on pre-2003 laws with all their flaws and restrictions?

Objective of the Campaign

The campaign aims to develop a legal framework and foundations that cannot be circumvented or ignored in any future draft legislation that regulates the freedom of expression, association, and peaceful assembly, guaranteeing that such drafts conform with the principles upheld by the Iraqi Constitution in force and international conventions and treaties.

The mechanism adopted to reach this objective consists of looking into relevant challenges and issues and formulating the recommendations and proposals outlined in this report as shared during our four sessions by local communities, experts, and stakeholders, including journalists, human rights defenders, lawyers, jurists, organisations, and political parties.

Consultation Sessions with Stakeholders

Session 1



Al-Anbar Governorate Session, held on Thursday, 21/09/2023, in the Ramadi district.

The campaign's coordinator in the governorate, Ali Al-Qaisi, inaugurated the session with welcoming remarks and an introduction about the campaign, underscoring the importance of organising such a large-scale campaign to exert pressure on legislative authorities to amend this Draft Law which restricts freedoms provided for in the Iraqi Constitution as well as international charters and laws signed by Iraq.

Both the Government's Draft Law and the Draft Law version developed by civil society organisations (CSOs) were laid for discussion. Most of the provisions contained in the Government's Draft Law and their controversial parts, particularly Articles 1, 3, 5, 7, and 13, were discussed at length. Jurists and activists who exercised their right to freedom of expression (in demonstrations, sit-ins, or assemblies) expressed remarks on most of the paragraphs included in these articles. Some activists also talked about abuses they endured recently while expressing their opinions, which underscores the need for a law that is truly democratic and ensures the personal safety of protesters and freedom of expression defenders.

Participants (by number, gender, and entity)

Represented Entity	Women	Men	Total
Independent activists/ Human rights defenders	2	4	6
Local or international organisations	1	1	2
Citizens and general public	1	2	3
Government/Iraq's High Commission for Human Rights (IHCHR)	1	1	2
Supreme Judicial Council	0	1	1
Journalists and media outlets	0	2	2
Iraqi MPs	0	1	1
Community police and law enforcement agencies	0	2	2
Total	5	14	19

Recommendations

The session lasted for more than two hours during which most of the attendees shared their views as well as situations and abuses they went through recently. A number of important recommendations were formulated regarding the Draft Law presented for discussion in the Parliament, including the following:

1. Expanding the powers granted to the head of the administrative unit requires a meticulous rewriting of relevant legal provisions to ensure clarity on prerogatives and avoid ambiguity:
   - Definition of powers granted to the head of the administrative unit – These powers must be clearly outlined in relation to public assemblies and demonstrations and any ambiguity in the legal text should be addressed.
   - Notification requirement – The Draft Law should indicate that the role head of the administrative unit shall be limited to receiving and referring notifications regarding any preparations for public assemblies and demonstrations. Such notifications should not be an obligation on the organisers of demonstrations.
2. Notification purpose – The Draft Law should state that these notifications aim at ensuring the protection and security of demonstrations, not at preventing them. Also, collaboration between concerned authorities and organisers must be encouraged to ensure the safety of public events.
3. Review of decisions – The Draft Law may include a review mechanism for decisions taken by the head of the administrative unit, with the possibility to file an appeal or a grievance in case the organisers are not satisfied with adopted procedures.
4. Time limits – Time limits may be fixed for procedures taken by the head of the administrative unit to prevent any abuse or prolonged application of these procedures.
5. Respect of human rights – All procedures and measures taken under the mandate of the head of the administrative unit must be compliant with human rights, individual freedoms, and relevant national and international laws.

6. Some situations might require that a demonstration or protest be organised without delay and therefore without a lengthy period of prior notification. This could be particularly important in emergency situations or unexpected events that call for an immediate response. To cater for such cases, the law may allow a short-notice (emergency) notification to concerned authorities or the head of the administrative unit before the start of the demonstration or protest instead of stating a specific pre-determined period of time prior to the event. The notification process must be simple and efficient to enable organisers to swiftly communicate their plans to authorities.
7. Focus on the main purpose – The main purpose is to preserve the balance between the citizens right to assembly and the authorities right to maintain general security. Relevant laws and regulations must include swift notification procedures to be followed in emergency situations without imposing an unreasonable burden on organisers.
8. Articles 1, 3, 5, 7, and 13 of the Draft Law must be amended to take into account civil society's demands and provide sufficient legal space for freedom of expression.
9. Some generic terms (e.g., public morals, objects with religious sanctity, religious symbols) lack clarity, which can be used as a pretext to stifle and restrict freedoms. It is therefore imperative to clarify such ambiguities.
10. It is important to continue holding similar meetings, vigils, and sessions to demand the amendment of this Draft Law and exert pressure on decision makers.

Session 2

Dhi Qar Governorate Session, held on Friday, 22/09/2023, in the Nasiriyah district.



The campaign's coordinator in the governorate, Ahmad Al-Yasari, inaugurated the session held to discuss Iraq's Draft Law of Freedom of Expression and Peaceful Assembly. An introduction was made about the importance of the campaign and its role in exerting pressure on the legislative authorities to amend the Draft Law, deemed to be restrictive of freedoms provided for in the Iraqi Constitution as well as international charters and laws.

Both the Government's Draft Law and the Draft Law version developed by CSOs were laid for discussion. Most of the provisions included in the Government's version were thoroughly debated with a focus on the most controversial parts, including Articles 1, 3, 5, 7, and 13.

All the participants shared their remarks on these articles and the challenges faced by activists, whether men or women, in the exercise of their right to freedom of expression, including abuses they endured while taking part in demonstrations, sit-ins, and assemblies. They underscored the importance of having a democratic law that truly meets the standards of democracy and guarantees the safety of everyone exercising their right to freedom of opinion.

Participants (by number, gender, and entity)

Represented Entity	Women	Men	Total
Independent Activists/ Human rights defenders	2	9	9
Local or international organisations	0	2	2
Citizens and general public	0	3	3
Government/Iraq's High Commission for Human Rights (IHCHR)	0	1	2
Supreme Judicial Council	0	1	1
Journalists and media outlets	0	2	2
Candidates for Governorate Councils	0	1	1
Anti-riot police	0	1	1
Total	2	19	20

Recommendations

The session lasted for more than two hours with significant participation from most of the attendees who shared their views and stances regarding Iraq's Draft Law of Freedom of Expression and Peaceful Assembly. It was concluded with a number of important recommendations related to the Draft Law presented for discussion in the Parliament, which should be taken into consideration to make sure that the purpose of amending the said Draft Law is achieved. Most importantly, it was recommended that the legal provisions should be amended and reformulated to expand the powers granted to the head of the administrative unit regarding public demonstrations and assemblies. Additional clarifications on each recommendation are outlined below:

1- Expanding the powers of the head of the administrative unit:
   - Meticulously rewrite relevant legal provisions to clearly and accurately define the powers granted to the head of the administrative unit and avoid any ambiguity in the legal text.
   - Define the powers granted to the head of the administrative unit – The definition must include clear and accurate details on these powers in relation to public assemblies and demonstrations.
2- Notification receipt and referral – The Draft Law should clarify the role of the head of the administrative unit in terms of receiving and referring notifications regarding demonstrations, when necessary and needed. Such notifications should not be an obligation on the organisers of demonstrations in many circumstances, except when deemed necessary and by their own choice in order to facilitate and ensure the exercise of their right to freedom of expression, demonstration, and assembly.
3- Notification purpose – The Draft Law should state that these notifications aim at ensuring the protection and security of demonstrations, not at preventing them.
4- Review of decisions – The Draft Law may include a review mechanism for decisions taken by the head of the administrative unit, with the possibility to file an appeal or a grievance in case the organisers are not satisfied with adopted procedures.
5- Time limits – Time limits must be fixed for procedures taken by the head of the administrative unit to prevent any abuse of these procedures.

6- Respect of human rights – All procedures and measures must be compliant with human rights, individual freedoms, and relevant national and international laws.
7- Emergency notification: The Draft Law should provide for short-notice (emergency) notifications to authorities in emergency situations or unexpected events that call for an immediate response.
8- Aforementioned Draft Law articles must be amended to take into account civil society's demands and provide sufficient legal space for freedom of expression.
9- Clear terminology: Generic terms such as "public morals" and "objects with religious sanctity" must be clarified to prevent their misuse in a bid to stifle freedoms during demonstrations.
10- Balance between rights: Relevant laws and regulations must include swift notification procedures to be followed in emergency situations without imposing an unreasonable burden on organisers.
11- Continuous collaboration: Continuous outreach and collaboration efforts must be exerted to work with civil society on amending and improving the Draft Law in order to ensure full respect of human rights and freedoms and address any ambiguities in the legal text.

Session 3

Baghdad Governorate Session, held on Saturday, 07/10/2023, in Al-Karada.



The campaign's coordinator in Baghdad, Ali Al-Qaisi, inaugurated the session with welcoming remarks and an introduction about the campaign and its importance. A special emphasis was made on the need to amend Iraq's Draft Law of Freedom of Expression and Peaceful Assembly, deemed to be restrictive of freedoms provided for in the Iraqi Constitution as well as international charters and laws signed by Iraq.

Both the Government's Draft Law and the Draft Law version developed by CSOs were laid for discussion. Most of the provisions included in the Government's version were thoroughly debated with a focus on the most controversial parts, including Articles 1, 3, 5, 7, and 13. It is worthy to note that jurists and activists who took part in demonstrations, protests, and assemblies for expressive purposes shared a number of remarks on these articles. They have also shed light on abuses they were recently subjected to while expressing their opinions, which confirms the need for a law that protects the democratic rights and individual freedoms of protesters and freedom of expression defenders.

This preliminary discussion is crucial to identify the priorities and requirements to be addressed in the national Campaign for the Amendment of Iraq's Draft Law of Freedom of Expression and Peaceful Assembly and presented to the Government in order to introduce necessary amendments to guarantee freedoms and democracy in the country.

Participants (by number, gender, and entity)

Represented Entity	Women	Men	Total
Independent Activists/ Human rights defenders	2	2	4
Local or international organisations	1	1	2
Citizens and general public	1	2	3
Representatives of the Parliament	1	1	2
Supreme Judicial Council	1	1	1
Journalists and media outlets	1	2	3
Iraqi MPs	1	1	1
Community police	0	2	2
Total	8	12	20

Recommendations

The session lasted for more than two hours during which most of the attendees shared their views as well as situations and abuses they went through recently. It was concluded with a number of important recommendations regarding the Draft Law presented for discussion in the Parliament, including the following:

1. Promoting the protection of freedom of expression: The attendees underscored that the Draft Law should promote the protection of the right to freedom of expression and peaceful assembly as well as the rights of the press, and ensure that no infringements of such rights occur.
2. Improving the definition of concepts: It was recommended that the definition of terms and concepts used in the Draft Law, such as peaceful assembly, incitement, or support of violence, should be improved to ensure clarity and equity in the implementation of the law.
3. Independent monitoring: It was recommended that an independent control and monitoring body should be established to oversee the implementation of laws related to freedom of expression and report periodically on the situation of relevant rights.
4. Community consultation: The attendees stressed the importance of involving civil society, associations, and activists in the development and implementation of policies related to freedom of expression through continuous consultation.
5. Training and awareness raising: It was recommended that training and awareness raising programmes should be organised for jurists, security forces, journalists, and activists on rights related to freedom of expression and ways to deal with various situations.

As part of the national Campaign for the Amendment of Iraq's Draft Law of Freedom of Expression and Peaceful Assembly, these recommendations to efficiently promote and protect the rights related to freedom of expression in Iraq were presented during meetings in October 2023 between the campaign's committees and the Iraqi Parliament and the Parliamentary Human Rights Committee.

Session 4

Wasit Governorate Session, held on Tuesday, 10/10/2023, in the Kut district.



The campaign's coordinator in Baghdad, Ali Al-Qaisi, inaugurated the session with welcoming remarks and an introduction about the campaign and its importance. A special emphasis was made on the need to amend Iraq's Draft Law of Freedom of Expression and Peaceful Assembly, deemed to be restrictive of freedoms provided for in the Iraqi Constitution as well as international charters and laws signed by Iraq.

Both the Government's Draft Law and the Draft Law version developed by CSOs were laid for discussion. Most of the provisions included in the Government's version were thoroughly debated with a focus on the most controversial parts, including Articles 1, 3, 5, 7, and 13. It is worthy to note that jurists and activists who took part in demonstrations, protests, and assemblies for expressive purposes shared a number of remarks on these articles. They have also shed light on abuses they were recently subjected to while expressing their opinions, which confirms the need for a law that protects the democratic rights and individual freedoms of protesters and freedom of expression defenders.

This preliminary discussion is crucial to identify the priorities and requirements to be addressed in the national Campaign for the Amendment of Iraq's Draft Law of Freedom of Expression and Peaceful Assembly and presented to the Government in order to introduce necessary amendments to guarantee freedoms and democracy in the country.

Participants (by number, gender, and entity)

Represented Entity	Women	Men	Total
Independent Activists/Human rights defenders	2	2	4
Local or international organisations	1	1	2
Citizens and general public	1	2	3
Representatives of the Parliament	1	1	2
Supreme Judicial Council	1	1	1
Journalists and media outlets	1	2	3
Iraqi MPs	1	1	1
Community police	0	2	2
Total	8	12	20

Recommendations

The session lasted for more than two hours during which most of the attendees expressed their views as well as situations and abuses they went through recently. It was concluded with a number of important recommendations regarding the Draft Law presented for discussion in the Parliament, including the following:

1. Promoting the protection of freedom of expression: The attendees underscored that the Draft Law should promote the protection of the right to freedom of expression and peaceful assembly as well as the rights of the press, and ensure that no infringements of such rights occur.
2. Improving the definition of concepts: It was recommended that the definition of terms and concepts used in the Draft Law, such as peaceful assembly, incitement, or support of violence, should be improved to ensure clarity and equity in the implementation of the law.
3. Independent monitoring: It was recommended that an independent control and monitoring body should be established to oversee the implementation of laws related to freedom of expression and report periodically on the situation of relevant rights.
4. Community consultation: The attendees stressed the importance of involving civil society, associations, and activists in the development and implementation of policies related to freedom of expression through continuous consultation.
5. Training and awareness raising: It was recommended that training and awareness raising programmes should be organised for jurists, security forces, journalists, and activists on rights related to freedom of expression and ways to deal with various situations.

As part of the national Campaign for the Amendment of Iraq's Draft Law of Freedom of Expression and Peaceful Assembly, these recommendations to efficiently promote and protect the rights related to freedom of expression in Iraq were presented during meetings in October 2023 between the campaign's committees and the Iraqi Parliament and the Parliamentary Human Rights Committee. In parallel, outreach and networking efforts should seek to engage organisations and associations concerned with the same topic by holding panel discussions to develop thorough and unified recommendations that pave the way for unified efforts. This will also enable us to share all the proposals put forward during sessions held by different organisations, including the **Iraqi Women Network** and the **Iraqi Observatory for Human Rights**.

Challenges and Issues

1- The 2010 Draft Law in Article 1 (First), as well as in other paragraphs, uses in the definition of freedom of expression the term "citizen" to refer to the beneficiary of the law. This use is gravely problematic from linguistic and legal perspectives. It suggests that the law does not allow non-citizens in Iraq to exercise this right. If this is the legislative purpose behind the text, the selected wording would constitute a flagrant mistake, given that the freedom of expression is a fundamental human right that should involve no discrimination whatsoever for it is inherently non-discriminatory. In addition, the same provision is limited to natural persons and does not cover legal persons (e.g., organisations, associations, unions, federations, political parties), which

are also entitled to exercise this right under their legal name, pursuant to applicable laws related to the freedom of assembly, demonstration, and opinion.

2- Article 1 (First) of the Draft Law includes the terms “public morals” and “public order.” These are broad and loose terms that lend themselves to various interpretations especially when it comes to cases related to freedom of expression and opinion, given that these cases are sometimes associated with personal intentions. In other terms, they are characterized by an implied and relative nature that varies by place and time and depends on cultural legacies.
3- Article 1 (Third) of the Draft Law includes a definition of the right to information, which is another standalone right that cannot be reduced to one article in this law.
4- Article 1 (Fourth) of the Draft Law refers to public squares and streets. It therefore imposes a restriction on the places where demonstrations and assemblies can be held, which is in contradiction with the essence of this right as it is legally invalid to impose such limitation on demonstration and assembly choices.
5- Article 1 (Sixth) of the Draft Law – There is no need to refer to electoral assemblies in a law on freedom of expression, considering that such assemblies are regulated by other more relevant laws, including the Law on the Formation of Political Parties, the Electoral Law, and the laws and regulations issued by the Independent High Electoral Commission (IHEC) before every election. In addition, if these assemblies are regulated by laws related to freedom of expression, they would not be subject to due accountability (e.g., for misuse of public funds in electoral campaigns, etc.).
6- Many of the previously stated remarks apply to Article 2 of the Draft Law, including the regulation of multiple rights by the same law. Such practice compromises the capacity to guarantee a particular right and produces weak and unspecialised laws that are hard to amend and do not serve their purpose. This is to be added to the use of terms like public morals and public order.
7- Article 3 (First) is a provision related to the right to seek and receive information.
8- Article 3 (Second) – Designating Iraq’s High Commission for Human Rights (IHCHR) as the competent authority to adjudicate complaints is incorrect, given that the Commission is an independent control body, not a judicial authority.
9- Article 5 (First) – The prohibition of any propaganda for war seems to be implying that there is ongoing war or hostilities between Iraq and another country, given that wars usually oppose states. In this context, it should be noted that Iraq, pursuant to the Preamble of its Constitution (stipulating a pledge “to cast aside the politics of aggression”), does not hold any animosity towards any other country. In addition, all declarations of war shall be solely governed by Article 61/Ninth of the Constitution, upon a consent by the two-thirds majority of the Parliament based on a joint request from the President of the Republic and the Prime Minister.
10- Article 5 (First) and (Second) – The notions of sects and national identities are controversial, even in the Constitution. By introducing such segmentation and placing it above citizenship, the Draft Law is somehow in contradiction with the principle of citizenship. How will it deal with religions and other groups that are not recognised yet by the Constitution? Will the members of these groups be granted the same privileges as all other individuals? Furthermore, the defamation of religions is also governed by provisions in laws currently in force, such as the Penal Code.
11- Article 6 (Second) – Same remarks as in Point 5 above regarding elections and electoral campaigns.

12- Article 7 (First) – Introducing the notion of obtaining/requesting an "authorization" to hold a demonstration or an assembly is totally rejected and unacceptable, as it contravenes the essence of the right and restricts this right as established in international instruments based on the minimum standards for human rights observance. In fact, notifications are not served to obtain approval or authorization from concerned authorities but rather to inform the latter and enable them to fulfill their constitutional and legal duty which consists of providing the necessary protection and facilities to enable the exercise of the right to freedom of expression, as it should be the case for all other rights without any distinction.

13- Article 7 (Third) – The powers granted to the head of the administrative unit are stated without clearly identifying the competent administrative unit and its administrative level. Do administrative unit officials have the necessary experience and knowledge to deal with cases related to freedom of opinion? In addition, the head of the administrative unit is often affiliated with the largest political forces in their geographical areas and subscribes to their political views. And given that most of the cases related to freedom of expression and peaceful assembly are associated with complaints about services that must be executed and provided by the same political forces, this provision leads to an extremely dangerous situation.

14- Article 7 (Third) – Referring to the courts of first instance without any mention of summary jurisdiction for any case related to the right to freedom of expression is incorrect, given that such cases require swift actions and that demonstrations and peaceful assemblies are mostly spontaneous and associated with fast-developing and urgent events that affect our daily life.

15- Article 8 (First) and (Second) – This Article stipulates that public assemblies are "prohibited" and "not permitted" in certain places, and sets a specific time for the exercise of relevant rights. It therefore imposes a restriction that breaches the essence of the right and contravenes the legal principle of original permissibility.

16- Article 8 (Fourth) – Same remark on the use of the terms "public order" and "public morals."

17- Article 9 (First) – The prohibition of assemblies in public places such as schools, universities, and places of worship is invalid. Such legal provisions should be thoroughly examined before enactment so as to ensure that they are executable and realistic. How is it possible to prohibit assembly in places of worship where people gather every day to perform religious rituals regardless of their religion and where they often discuss topics related to freedom of expression? For instance, Friday sermon in Islam consists of two parts: one religious and the other political and social. Also, how can we prohibit students from exercising a basic human right for a certain period of time? Why not allowing them to express their opinions in their educational institutions and what alternative do they have?

18- Article 9 (Second): Carrying firearms of all kinds or any sharp instruments or tools that may harm people or properties during the assembly – While confirming the importance of exercising rights and freedoms within legal frameworks by peaceful and democratic means, we note that this is a broad, relative, and muti-faceted matter. How can we identify all the tools that may cause harm to people, especially that psychological harm is largely of personal nature? The use of such terms in prohibiting provisions would give a green light to law enforcement forces to limit the exercise and enjoyment of relevant rights. For instance, demonstrators holding Iraqi flags were prevented

from entering a demonstration location under the pretext that the flag stick is considered as an edged weapon.

19- Article 10 (First) and (Second) – As mentioned earlier, limiting the holding of demonstrations to a specific time is restrictive of the right to freedom of expression and peaceful assembly.

20- Article 11 (First): "If demonstrations and assemblies are organised in accordance to the provisions of this law" – This expression is not valid and implies that the law grants executive authorities permission to abstain from defending those who contravene it, which is incompatible with all laws and regulations. In fact, it is the duty of the Government to ensure the protection and security of all natural and legal persons, whether they are partaking in a demonstration or a peaceful assembly or expressing their opinion by any other means, given that such activities do not alter the basic characteristics of the person.

21- The Draft Law refers to the notion of "use of force" to break up an assembly or a demonstration, using vague words that do not specify the type of force in accordance with general and humane rules and principles governing the actions of law enforcement agencies in countries that respect and observe human rights and representing the minimum standards required to prevent harm to persons exercising their rights.

22- Article 11 (Second) – The notion of damage is indisputable. No reminder or mention of this sort is needed in laws related to freedom of expression. The Draft Law refers to the responsibility of organisers as being sequential. In other terms, if persons unknown to the organisers take part in a demonstration and inflict damage to properties and funds, the organisers would be held liable for such actions. This description would intimidate natural and legal persons into refraining from participating in demonstrations and enjoying this right.

23- Article 12 – The terms "public order" and public morals" are mentioned again without clarifying how to deal with cases under this Article and how to prevent potential misuses of these terms that can be detrimental to concerned rights.

24- Article 13 (First) and (Second) – The inclusion of punitive provisions in a law that regulates rights is in conflict with the principles of human rights. As a result, we are dealing with a punitive law, not a procedural law that aims at promoting concerned rights. In the same vein, the Draft Law does not identify the procedures to be adopted against those who fail to protect and promote these rights or who obstruct access to the latter.

25- Article 13 (Second-E) – The notion of sacrality is too loose and broad. Human beings might believe in objects or physical or moral persons, whether they actually exist or not. How to prohibit insults to such objects or persons? And is the opposite behaviour permissible? In other terms, is it allowed to insult a non-sacred place or person? What are the measures and criteria of insult? Who is the competent authority to judge it?

Final Proposals and Recommendations

1- Review the use of the term “citizen” and replace it with “natural or legal person” to include all those who are eligible to the right and guarantee unbridled enjoyment of such right.
2- Include accurate and clear explanation of the grounds for imposing restrictions (public morals, public health, national security), align such grounds with international human rights standards and principles, and clearly specify relevant judicial mechanisms.
3- Exclude the right to information from this Draft Law and regulate it in a special law, given that this right requires specific interpretation and special provisions.
4- Eliminate the limitations imposed on the places where demonstrations and assemblies may be held, and refrain from naming or specifying these places.
5- Eliminate all mentions of electoral assemblies and campaigns for they are related to and governed by other applicable laws such as the Law on the Formation of Political Parties, the Electoral Law, and the IHEC Electoral Campaign Regulation No.2 of 2023 issued pursuant to IHEC Law No. 31 of 2019.
6- Same as Recommendation 3.
7- Ensure alignment with IHCHR mandate, pursuant to Articles 4 and 5 (Chapter 2) of IHCHR Law No. 53 of 2008.
8- Remove the expression, given that it falls under the competence of legislative and executive authorities and that applicable laws include provisions governing acts of incitement to violence and hostility whether between individuals or states.
9- Refer only to the provisions of Iraq’s Penal Code No. 111 of 1969 to address and regulate matters pertaining to religions, diversity, etc.
10- Limit the requirement to a simple notification, without the need to wait for a permission, approval, permit, objection, refusal, or any other concept implying approval or rejection.
11- Article 7 (Second) – The requirement of forming an organising committee responsible for the proper management and organisation of demonstrations is strenuous and nearly impossible to fulfill. It would force any person to refuse to shoulder a responsibility that is supposed to be fulfilled by the sponsor and protector of rights, i.e., the executive power. This responsibility or any part of it shall not be waived or transferred to individuals. Adopting this approach would impair and undermine access to human rights.
12- The executive power must be entirely responsible for the proper management and organisation of any demonstration as well as its protection from any external or subversive parties that might join it against the will of those who are exercising their right to freedom of expression by peaceful and democratic means.
13- If executive authorities need to be notified of the exercise of the right, a central entity must be assigned to receive notifications. The notification process must be designed in a way that guarantees the delivery of desired service (easily accessible, available to the public, free, swift).
14- If a judicial body is required to adjudicate cases of freedom of expression, tribunals specialised in human rights must be activated, provided that they are equipped with judges that are trained and experienced in similar cases (e.g., Human Rights Court in Al-Rasafa Federal Court of Appeal in Baghdad).

15- Refrain from imposing time and space restrictions on the exercise of the right to freedom of expression and peaceful assembly.
16- Same as Recommendation 2.
17- Refrain from restricting the exercise of the right in public places, for such restriction violates the essence of the right and contravenes the principles of human rights which should be exercisable regardless of any geographical boundaries.
18- Ensure that the prohibition of weapons is solely regulated by relevant applicable laws, such as the Penal Code and the Gun Law, and refrain from imposing such prohibition without proper planning as to how carried firearms can be identified and who is the entity competent to enforce the prohibition.
19- Refrain from imposing any time and space restrictions.
20- Provide protection to everyone without any discrimination.
21- If the reference to the use of force is necessary, the Draft Law should use restrictive terms and should not give blanket permission to incompetent entities to use force. Example of legal expressions frequently used in policing rules and regulations in most countries that observe and apply human rights standards: if needed, minimal force shall be used, without resorting to lethal force.
22- Refer to the individual responsibility of every person only as regulated by applicable laws such as the Iraqi Penal Code.
23- In addition to the need for an accurate definition of these terms, the Draft Law may use terms that reassure society and establish boundaries to be respected by those responsible for implementing the law, while referring to the respect of criteria and standards adopted internationally to restrict rights (proportionality, necessity, legality, time, minimal impairment).
24- Eliminate all punitive procedures and replace them with procedures to be taken against who fails to promote and protect the right, while referring only to the provisions of applicable laws governing actions related to sects, religious rituals, degradation of religions, and hatred speech.
25- Eliminate the notion of sacrality, while referring only to the Penal Code in force which governs similar matters.

Sources and resources (in Arabic and English)

Iraqi Constitution of 2005: Click here

Penal Code No. 111 of 1969: Click here

Coalition Authority Order No. 19 of 2003: Click here

Universal Declaration of Human Rights 1948: click here

International Covenant on Civil and Political Rights 1966: click here

Arab Charter on Human Rights, latest version: click here

The repealed Basic Law Constitution of 1925: click here

Draft Freedom of Expression of Opinion Law of 2011: Click here

The Prime Minister's proposals to the House of Representatives in draft form (known as the 2023 draft): Click here

Iraqi Women Network Paper: Click here